



RIO IMMIGRATION

CONSULTANCY GROUP

"SERVICE AGREEMENT"

This contract of engagement is being entered into by and between:

CLIENT:

REPRESENTATIVE:

Acting on the Client's Behalf (if applicable)

ADDRESS:

DATE OF BIRTH:

Hereinafter referred to as the "CLIENT" AND **Rio Immigration Consultancy Group, located at Unit-08, 7015 Tranmere Drive, Mississauga, ON. Canada L5S 1T7.** Hereinafter referred to as the "Company".

The Company's consultants, Mr. Ankit Maan, MEMBERSHIP NO. **R709941**, Mr. Jaipal Singh Syan, MEMBERSHIP NO. **R709803** & Mr. Mohit Raghav, MEMBERSHIP NO. **R710383** are members of the College of Immigration and Citizenship Consultants. (CICC – 5500 North Service Road, Suite 1002, Burlington, ON L7L 6W6 Tel: 1-877-836-7543 <http://www.college-ic.ca>) and is thereby authorized to represent, advise, or consult with the client regarding a proceeding or application before the Minister or an Officer.

The Client hereby retains the services of the COMPANY to receive the following professional services:

- with respect to the preparation and submission of an application on behalf of the client and the COMPANY hereby accepts such mandate, the whole subject to the following terms and conditions:

NOW, THEREFORE IT IS AGREED AS FOLLOWS:

1. **i. Duties of the Company:**

- Review, compile, and prepare case submissions and file them in a competent manner with the relevant Visa office.
- Liaise with the concerned authorities and handle all correspondence pertaining to the Client's case.
- Faithfully assist the Client in ongoing requirements by the concerned authorities with respect to the Client's case.
- To keep the Client informed of case progress, errors, and omissions.
- To answer all reasonable requests from the Client for information. To hold in strict confidence all information concerning the personal and business affairs of



WWW.RIOIMM.CA



INFO@RIOIMM.CA



905-462-9000

7015 TRANMERE DR UNIT-8, MISSISSAUGA, ON L5S 1T7



the Client acquired during the professional relationship and shall not disclose such information unless disclosure is expressly or impliedly authorized by the Client, is required by law, or is otherwise permitted by the Rules.

- To take all reasonable steps to ensure the privacy and safekeeping of a client's confidential information.
- To not disclose the fact of having been consulted or retained by the client unless the nature of the matter requires such disclosure.
- Subject to being compelled by law or legal process, the Company shall preserve the Client's confidential information even after the termination of the retainer, whether differences have arisen between the Company and the Client.
- To ensure the safekeeping of the Client's property in accordance with the law and with reasonable due care.
- Not to act or continue to act when there is or is likely to be a conflict of interest.

ii. Duties of the Client:

- To faithfully provide all information requested by the Company and the concerned authorities as per the Company's instructions. The Client shall be solely responsible for all the consequences for the submission of false or incorrect information and any consequences arising out of any delays on the part of the Client in submitting such documents.
- Execute forms as required and obtain all documents and information that may be necessary for the processing of the case as per the Company's instructions.
- Forthwith, provide all supporting documentation and other evidence as requested by the Company and shall only provide such documents that are legal, valid, and genuine, especially with respect to Educational Qualifications, Experience, and language requirements. Any inaccuracy with respect to the same may seriously affect the Application of the Client. The client would be responsible for the adverse effect on the case because of non-submission / delayed submission of required documents and other evidence.
- Faithfully disclose to the Company all information related to all the Client and the Client's dependents, current or prior criminal charges, and/or convictions.





RIO IMMIGRATION

CONSULTANCY GROUP

- Forthwith, advise the Company of all communications the Client receives from the concerned authorities.
- Always provide the Company with adequate instructions and more specifically, advise the Company of any change in information relating to address, education, training, employment, job responsibilities, marital status, criminal charges, or any other information or circumstances that may render him/her inadmissible and or have a direct impact on his/her case.
- Attend all interviews as and when required by the concerned authorities and promptly follow all instructions as communicated by the processing Visa office.
- Forthwith, pay the processing fees levied by the concerned authorities. The client would be responsible for any adverse effect on the case due to delay or non-payment of processing fee charges by Immigration Authorities. If there are any changes in any fees levied by the Authorities, the client will bear them.
- The Client has a duty to provide instructions on all matters the Company must perform relating to his/her case.
- The Client agrees to pay the Company fee, expenses, and disbursements for the final bill issued.

2.FEES (Including Taxes):

Billing method

The Client(s) will be billed by the hour or by flat fee with payment by milestones or predetermined date(s). The details of this billing method are as follows: Hourly rate charged when determined by pertinent milestones or predetermined dates, plus reimbursement for any additional disbursements incurred by the Company on behalf of the Client and deemed as owing.

Payment Terms and Conditions

Professional Fees :

Other [e.g., disbursements, courier fees, Incorporation fees, etc.] :

Applicable Taxes [including registered tax numbers] :



WWW. RIOIMM. CA



INFO@ RIOIMM. CA



905 - 462 - 9000



RIO IMMIGRATION

CONSULTANCY GROUP

Government Fees :

Total Cost :

The above amount is to be paid by the Client(s) and is subject to change upon mutual agreement of both parties.

Payment Schedule:

Deposit: (paid at billing)

Balance:

The Client agrees to pay the retainer amount. When the retainer has been exhausted, the Client may be asked to pay an additional retainer. The retainer amount will be kept in the Client's account for the Client's benefit until the bill is issued. The Client will be billed at \$250 per hour plus, as well as disbursements. At the end of the case or termination of the services by the Client or the Company for any reason within the terms of this agreement, the firm shall refund through cheque the amount of the retainer fee less than the amount billed for the work done at the rate of \$250 per hour plus disbursements. The Company shall not refund any professional fees already billed to the client for services rendered. The Company will immediately issue a final bill, charging the Client for any work that has already been completed that has not yet been billed to the Client. The Company will refund any money provided by the client that remains in the Client's Account after the final bill has been paid. The Company shall not be responsible for refunding the fee paid by the Client to any concerned authorities, i.e., educational institution, immigration, or any other entity to whom the Client has paid the fee.

3. Interest Clause:

The Client hereby agrees and undertakes that in case the professional fee/charges payable to the Company are delayed beyond 30 days from the due date, the same shall be paid by the Client along with cumulative monthly interest @ 1.5%. The Client also undertakes not to issue instructions to the bank not to honor the cheque/draft/credit card payment.



WWW.RIOIMM.CA



INFO@RIOIMM.CA



905-462-9000

7015 TRANMERE DR UNIT-8, MISSISSAUGA, ON L5S 1T7



4. Fee charged to Authorities

In addition to the professional fee of the Company outlined in Clause 2 of this agreement, the Client agrees and undertakes to pay the fee to the Immigration Authorities, educational institution, or any other body if any. Fees are to be paid to the Authorities are to be made in the form of bank draft, credit card payment, online payment, receipt of payment (IMM5401), and another applicable mode of payment. The fee is payable at the time of instituting the application and required at the time of filing the case, and the same is non-refundable as per the policy of the authorities to whom the fee is paid. The Company shall not be responsible for refunding the Client's fee to the concerned authorities, i.e., educational institution, immigration, or any other entity for which the Client has paid the fee.

5. The Company shall not assist the Client in the following work, directly or indirectly: In passport work (of any type); In procuring Educational/Experience Certificates; In procuring or providing other documents and evidence required for the immigration case.

6. The Company has disclosed to the Client the current normal processing time taken by the concerned processing centers where the Client wishes to file his/her case. The Company has also advised the Client that the Company has no control over any delays or processing timeframes. The Company shall not be responsible for any delays which occur due to a backlog of cases at the service center, Visa post of concerned authority, or for any other reason.

7. Withdrawal of Representation and Termination

(i) **Obligatory withdrawal** – The Company shall sever the Company-client relationship or withdraw as representative if:

- Discharged by the Client.
- Instructed by the Client to do something illegal or in contravention of any rules in the Rules;
- Company's continued involvement will place the Company in a conflict of interest.

(ii) **Optional withdrawal** – The Company has the right to sever the Company-client relationship or withdraw as a representative if there has been a serious loss of confidence between the Company and the Client, such as where:





- The Client has deceived the Company.
- The Client has refused to provide adequate instructions/information to the Company;
- The Client has refused to accept and act upon the Company's advice on a significant point.

(iii) Residual right to withdraw – In situations not covered by rules 7(i) and 7(ii), the Company may terminate the Company-client relationship in writing and upon mutual consultation with the Client, giving the Client sufficient time to transfer his case to another company and reasonably ensure that such termination is fair to both parties concerned, will not be unfair to the Client, and is not done for improper purposes.

(iv) Withdrawal for non-payment of fee – The Company is at liberty to withdraw its services if, after reasonable notice, the Client fails to provide funds on account of disbursements or fees and in accordance with clause 7(iii).

8. Manner of Withdrawal/ Termination

The Company may issue a written notice to terminate its services in accordance with Clause 7(iii) of this contract. In circumstances where the Client is unavailable and cannot be contacted for discussion, after all reasonable attempts made by the Company to contact the Client, the Company will serve upon the Client a 14-day written notice to the address of the Client available on record. Such notice shall be deemed to be a written notice to terminate the Company-client relationship and termination of all obligations under this contract. Failure on the part of the Client to respond to such notice shall amount to acceptance on the part of the Client to terminate all obligations under this contract and other such obligations arising out of the Company-client relationship.

9. Upon discharge or withdrawal, the Company shall:

- i. Deliver to or to the order of the Client all papers and property to which the Client is entitled;
- ii. Give the Client all information that may be required in connection with the case or matter;
- iii. Promptly render an account for outstanding fees and disbursements.





- iv. Co-operate with any successor counsel to minimize expense and avoid prejudice to the Client;
- v. Notify in writing Citizenship and Immigration Canada or to Immigration and Refugee Board where the Company's name appears as representative for the Client that the Company has withdrawn.

10. No Guarantee of Success

The Client understands and agrees that although the Company, through Consultants, may provide advice about the probability of success of an immigration matter or application that is the subject matter of this agreement, the Company does not guarantee any particular result since the outcome of an immigration matter or application is at the sole discretion of the Minister, an Officer. The Client acknowledges that the Company has made no promises or guaranteed success about the outcome and that any suggestions offered by the Company or Consultants will not constitute a guarantee. The Client understands that his case involves risk and uncertainty in the law, the facts, and the evidence.

11. a) Force Majeure

The RCIC's failure to perform any term of this Retainer Agreement, as a result of conditions beyond his/her control such as, but not limited to, governmental restrictions or subsequent legislation, war, strikes, or acts of God, shall not be deemed a breach of this Agreement.

- 12.** The Company shall not be held responsible in any way for any changes in the Client's circumstances or any other changes which may have or will occur in the Immigration Act and Regulations or any policies governed and regulated by the Government or the Inland and overseas Consulate / Immigration offices, which may have an adverse effect in processing of the Client's immigration application in any way, before or after the submission of the Client's immigration application at a Visa Post.

- 13.** The Client understands and expressly and impliedly authorizes the disclosure of confidential information in accordance with the Rules of Professional Conduct of the Canadian Society of Immigration Consultants INC. Rule 5.5 Commentary: 3 which states, "Disclosure of confidential information may be permitted where expressly or impliedly authorized by the Client or where compelled





RIO IMMIGRATION

CONSULTANCY GROUP

by law or legal process". Disclosure may also be permitted where the fee or conduct of an Immigration Consultant has been called into question by the Client – but, in such cases, disclosure may only be permitted to the extent necessary to defend against such allegations.

14. The authority of the Company to act on the Client's behalf shall include all of the Client's family members (Dependents) included in the application, and provisions of this Agreement shall be applicable to other family members of the Client as well.
15. If a dispute, controversy, or claim arises out of or relates to this contract, or the breach, termination or specific services, fee disputes, failure to respond to requests for information and the preservation of Client's property, the Client shall raise his/her complaint directly with the council in writing as per the internal complaint procedure:
 - (a) It requires the Client to state the substance of the complaint, the internal office file number, and the full name of the applicant along with the copy of the invoice, the original of which may be required at a later date.
 - (b) The complaint must be addressed to the council and must be sent directly to the counsel by registered mail at Race Canadian Immigration Consultancy Unit-08, 7015 Tranmere Drive, Mississauga, ON, L5S 1T7.
 - (c) Counsel may take up to 15 business days to respond to a Client complaint sent to him under the internal complaint procedure.
 - (d) The early mediation of matters will be restricted to fee disputes, failure to respond to requests for information and the preservation of the client's property.
 - (e) In the event the dispute is still unresolved, the Client(s) may follow the complaint and discipline procedure outlined by the ICCRC on their website: <http://www.iccrc-crcic.ca/public/complaintsDiscipline.cfm> NOTE: All complaint forms must be signed.

CICC Contact Information:

College of Immigration and Citizenship Consultants (CICC)

5500 North Service Rd., Suite 1002, Burlington, ON, L7L 6W6.

Toll-free: 1-877-836-7543

For all matters noted above requiring arbitration, said arbitration shall be conducted in



WWW. RIOIMM. CA



INFO@ RIOIMM. CA



905 - 462 - 9000

7015 TRANMERE DR UNIT-8, MISSISSAUGA, ON L5S 1T7



RIO IMMIGRATION

CONSULTANCY GROUP

accordance with the Commercial Arbitration Act 1986 in the English language. For all small claim matters, legal jurisdiction shall be only the City of Mississauga, Ontario, Canada.

The foregoing has been read, understood, and agreed to by the Client and the Company, and the Client hereby acknowledges and agrees that he/she has completely read each and every word of this agreement and understands all the clauses, sub-clauses, and terms of this agreement, and the Client further affirms that he/she shall not attempt to abrogate or limit the applicability of this agreement or any of its terms by claiming that he/she did not understand it. By Signing this contract, the Client undertakes that the Client is satisfied with this contract and has received the Client's copy of the contract.

If a representative of the Client is signing this contract on behalf of the Client, then any representative of the Client understands and declares that the Client has authorized him/her to conduct business, sign the contract, and provide instructions and information on behalf of the Client.

Client or Representative's Signature

Date

RCIC's Signature

Date



WWW.RIOIMM.CA



INFO@RIOIMM.CA



905-462-9000

7015 TRANMERE DR UNIT-8, MISSISSAUGA, ON L5S 1T7